

Court No. - 29

Case :- WRIT - C No. - 28050 of 2022

Petitioner :- Golfgreen Buildcon (Pvt) Limited

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- CSC, Abhishek Srivastava

Hon'ble Manoj Misra, J.

Hon'ble Vikas Budhwar, J.

We have heard Sri Bidhan Chandra Rai, learned counsel for the petitioner, learned Standing Counsel for the respondent no.1 and Sri Abhishek Srivastava, learned counsel for the respondents no. 2 and 3.

The petitioner is a developer and is engaged in development of a residential project. In connection with which, the petitioner had applied for a temporary electricity supply which was sanctioned on 12.8.2017. This temporary supply was extended from time to time and was last extended on 7.4.2022 for a period starting from 8.4.2022 upto 13.9.2022.

The case of the petitioner is that as the development work is not yet complete and the work is going on, an extension of the temporary supply was applied for, on which the Executive Engineer has recommended extension. The recommendation of the Executive Engineer addressed to the Superintending Engineer Electricity Urban Distribution Division-1, NOIDA dated 13.9.2022 has been brought on record as Annexure S.A.-1 to the supplementary affidavit.

Grievance of the petitioner is that despite having fulfilled all the necessary formalities for extension of the temporary supply, the supply has been stopped w.e.f. 14.9.2022 as a result whereof the development work has come to a stand still.

Prayer in this petition is to command the second and third respondents to accede to the request of the petitioner for extension of temporary supply for a further period of six months or till the release of the permanent connection supply in respect of which, the work is already on.

Sri Abhishek Srivastava, who appears for the respondents no. 2 and 3, has submitted that ordinarily temporary supply is to be accorded for a maximum period of two years as per Clause 4.10 (a) of the U.P. Electricity Supply Code, 2005 and since two years have already elapsed, the application for further extension

may not be maintainable.

Sri Bidhan Chandra Rai, learned counsel for the petitioner in response to the above submission, has invited our attention to the provisions of Clause 4.10 (a) of the U.P. Supply Electricity Supply Code, 2005 which provides that licensee may grant temporary supply for a period not exceeding two years for building construction, and three months for other purposes, unless otherwise provided in the tariff order.

By inviting our attention to the tariff order, which has been brought on record as annexure-10 to the petition, the learned counsel for the petitioner submitted that the tariff order specifically provides for an additional charge in respect of temporary supply from third year onwards meaning thereby that there is no prohibition in respect of extension of temporary supply beyond the period of two years subject to payment of additional 10% of the applicable energy charge. He also invited our attention to Clause 2.1 of the U.P. Electricity Supply Code, 2005 wherein it is provided that in case of any consistency between the Supply Code 2005 and the tariff order in force, the provisions contained in the tariff order in force shall prevail over the Code.

By relying on the aforesaid provisions, Sri Bidhan Chandra Rai, learned counsel for the petitioner, submitted that there is no legal bar in extending the temporary supply therefore, the Executive Engineer has also made a recommendation for such extension. He has accordingly prayed that a direction be issued upon Superintending Engineer to do the needful.

Considering the rival submissions as also the provisions of the U.P. Electricity Supply Code, 2005 and the tariff order brought on record, we deem it appropriate to dispose off this petition by requiring the Superintending Engineer of Electricity Urban Distribution Division-1, NOIDA to look into the matter and pass appropriate order on the extension application of the petitioner in light of the provisions of the Code as also the recommendations made by the Executive Engineer, preferably, within a week from the date a copy of this order is submitted in his office.

It is clarified that if the Superintending Engineer of Electricity Urban Distribution Division-1, NOIDA is not the appropriate authority to pass orders on the extension application of the petitioner, the extension prayer of the petitioner shall be placed before the concerned authority which shall do the needful as per law and in the light of the direction herein above

The petition stands disposed off.

Order Date :- 20.9.2022

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